

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #16	CCRB Case #: 202206281	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/08/2022 2:00 PM	Location of Incident: 1941 Forest Avenue	18 Mo. SOL 3/8/2024	Precinct: 121		
Date/Time CV Reported Fri, 09/09/2022 1:50 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 09/20/2022 10:48 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Evan Fernandez	25000	963026	121 PCT
2. SGT James Haley	01904	949076	121 PCT
3. PO Robert Semioli	22740	964286	121 PCT
4. PO Christopher Schiro	15133	956244	121 PCT
5. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . PO Christopher Schiro	Abuse: Police Officer Christopher Schiro stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . PO Evan Fernandez	Abuse: Police Officer Evan Fernandez stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . SGT James Haley	Discourtesy: Sergeant James Haley spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . PO Christopher Schiro	Abuse: Police Officer Christopher Schiro refused to provide his name to § 87(2)(b)	D . Unfounded
E . PO Christopher Schiro	Abuse: Police Officer Christopher Schiro refused to provide his shield number to § 87(2)(b)	E . Unsubstantiated
F . PO Evan Fernandez	Abuse: Police Officer Evan Fernandez refused to provide his name to § 87(2)(b)	F . Unfounded
G . PO Evan Fernandez	Abuse: Police Officer Evan Fernandez refused to provide his shield number to § 87(2)(b)	G . Unsubstantiated
H . PO Robert Semioli	Abuse: Police Officer Robert Semioli refused to provide his name to § 87(2)(b)	H . Unfounded
I . PO Robert Semioli	Abuse: Police Officer Robert Semioli refused to provide his shield number to § 87(2)(b)	I . Unfounded
J . SGT James Haley	Abuse: Sergeant James Haley refused to provide his name to § 87(2)(b)	J . Unfounded
K . SGT James Haley	Abuse: Sergeant James Haley refused to provide his shield number to § 87(2)(b)	K . Unfounded
L . An officer	Discourtesy: An officer gestured discourteously toward § 87(2)(b)	L . Officer(s) Unidentified
M . An officer	Discourtesy: An officer gestured discourteously toward § 87(2)(b)	M . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b), § 87(2)(g)		
§ 87(4-b), § 87(2)(g)		

Case Summary

On September 9, 2022, § 87(2)(b) filed this complaint at the 121st Precinct stationhouse (**BR 1**). It was received by the CCRB on September 20, 2022.

On September 8, 2022, § 87(2)(b) was driving his grey 2013 Infiniti G37 on Forest Avenue in State Island with his wife § 87(2)(b) and his two children when the vehicle was stopped by Police Officer Evan Fernandez and Police Officer Christopher Schiro (who has subsequently been promoted to Sergeant), of the 121st Precinct (**Allegations (A) and (B) - Abuse of Authority: Vehicle Stop, Within NYPD Guidelines**). Police Officer Fernandez informed § 87(2)(b) that he was pulled over due to his vehicle lacking a front license plate and then asked for his license and registration. At some point during the vehicle stop, Police Officer Robert Semioli and Sergeant James Haley, of the 121st Precinct, arrived at the location in another unmarked vehicle.

When Police Officer Fernandez and Police Officer Schiro returned to their vehicle, Sergeant Haley and Police Officer Semioli pulled up their unmarked vehicle beside § 87(2)(b)'s vehicle. Sergeant Haley, who was in the front passenger seat, allegedly rolled down his window and said to § 87(2)(b) "Suck my dick," (**Allegation (C) - Discourtesy: Word, unable to determine**). § 87(2)(b) "cursed out" Sergeant Haley, and the unmarked vehicle that Sergeant Haley was in drove off. § 87(2)(b) exited his vehicle, approached Police Officer Fernandez and Police Officer Schiro, and allegedly asked for their names and shield numbers, which they did not provide (**Allegations (D) and (F) - Abuse of Authority: Refusal to Provide Name, unfounded**) (**Allegations (E) and (G) - Abuse of Authority: Refusal to Provide Shield Number, unable to determine**).

After driving approximately one block away, Sergeant Haley's unmarked vehicle made a U-turn and returned to the scene. Police Officer Semioli and Sergeant Haley exited the vehicle and instructed § 87(2)(b) to return to his vehicle. § 87(2)(b) allegedly asked Police Officer Semioli and Sergeant Haley for their names and shield numbers, which they did not provide (**Allegations (H) and (J) - Abuse of Authority: Refusal to Provide Name, unfounded**) (**Allegations (I) and (K) - Abuse of Authority: Refusal to Provide Shield Number, unfounded**). As § 87(2)(b) was returning to his vehicle, either Police Officer Semioli or Sergeant Haley allegedly blew two kisses at him and then blew another kiss towards § 87(2)(b)'s son, § 87(2)(b), who was in the rear driver's side seat (**Allegations (L) and (M) - Discourtesy: Gesture, officer unidentified**). The officers left without issuing § 87(2)(b) any summonses.

Footage was obtained from the body-worn cameras (BWC) of Police Officers Semioli, Schiro, and Fernandez (**BR 9-14**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Schiro stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Evan Fernandez stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was interviewed by the CCRB on October 13, 2022 (**BR 3**), and he provided a follow-up telephone statement on February 22, 2023 (**BR 22**). § 87(2)(b) was interviewed by the CCRB on November 17, 2022 (**BR 4**). Sergeant Haley was interviewed by the CCRB on December 6, 2022 (**BR 5**). Police Officer Semioli was interviewed by the CCRB on December 13,

2022 (**BR 8**). Police Officer Fernandez was interviewed by the CCRB on January 6, 2023 (**BR 6**). Police Officer Schiro was interviewed by the CCRB on January 13, 2023 (**BR 7**).

It is undisputed that after the officers pulled over § 87(2)(b)'s vehicle, which is registered in New York State, Police Officer Fernandez informed him that it was because his vehicle was missing a front license plate. No summonses were issued to § 87(2)(b).

New York State Vehicle and Traffic Law § 402 (1)(a) (**BR 18**) states that no person shall operate a motor vehicle on a public highway unless that vehicle has a distinctive number assigned to it and a set of number plates issued with a number and other identification matter, corresponding to that of the certificate of registration conspicuously displayed, one on the front and one on the rear.

Footage from Police Officer Fernandez's BWC (**BR 11**) shows, at 1 minute and 26 seconds, Police Officer Fernandez walking to § 87(2)(b)'s vehicle and telling him, "The reason I'm stopping you is because you're missing a front plate." § 87(2)(b) responds, "I just got the car the other day." Police Officer Fernandez then asks him, "Do you have the license and registration? Do you have the plate number?" § 87(2)(b) responds, "Yup" and then gives his license, registration, and plate number. At 1 minute and 50 seconds, Police Officer Fernandez walks to the front of the vehicle to observe the license plate, though the front of the vehicle itself cannot be seen in the footage.

Footage from Police Officer Semioli's BWC (**BR 13**) shows, at 1 minute and 01 seconds, that § 87(2)(b)'s vehicle does not have a front license plate affixed to it.

§ 87(2)(g)

It is therefore recommended that **allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Discourtesy: Sergeant James Haley spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated (**BR 03**) that once Police Officer Fernandez and Police Officer Schiro returned to their vehicle, an unmarked black Ford Focus containing Police Officer Semioli and Sergeant Haley drove within six inches of the front driver's side of his vehicle. § 87(2)(b) described the two officers in the vehicle as an approximately 6'2" tall white male in his 30s with black hair and a heavy build and an approximately 5'0" tall male of Middle Eastern descent in his 20s with black hair, a beard, and a slim to medium build. As the unmarked vehicle passed § 87(2)(b) the tall white male officer, from the front passenger seat, rolled down the window and said to § 87(2)(b) "Suck my dick." § 87(2)(b) "cursed out" the officer as the vehicle drove away, momentarily.

§ 87(2)(b) (who was seated in the front passenger seat) stated (**BR 04**) that while she and § 87(2)(b) were inside of the vehicle, an unmarked Dodge Charger drove approximately five feet next to the driver's side of their vehicle, with the driver's side facing § 87(2)(b). She described one of the officers as an approximately 6'0" tall white male with blond hair and a heavy build but could not describe the other officer. The 6'0" tall white male officer rolled down his window and said to § 87(2)(b) "Suck my dick," and then proceed drive away. § 87(2)(b) then exited his vehicle and asked Police Officer Fernandez and Police Officer Schiro, "You heard what he just said to me?"

Sergeant Haley's NYPD Photo (**BR 23**) provides his pedigree as a § 87(2)(b) (at the time of the incident), § 87(2)(b) white male with brown hair. Though his build is listed as average, he appears, in the accompanying photo, to have a somewhat heavy build. At the time of his CCRB

interview, he provided his height and weight § 87(2)(b) Police Officer Semioli's NYPD Photo (BR 24) provides his pedigree as a § 87(2)(b) Hispanic male with brown hair, and average build, and a beard. At the time of his CCRB interview, he provided his height and weight as § 87(2)(b)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Police Officer Schiro's BWC (BR 12) shows, at 5 minutes and 4 seconds, § 87(2)(b) outside of his vehicle telling Police Officer Schiro, "He just told me to suck his dick." § 87(2)(b) walks back in towards his vehicle, and Sergeant Haley's vehicle can be seen facing in the direction of § 87(2)(b)'s vehicle. § 87(2)(b) is also outside, attempting to get § 87(2)(b) to return to the vehicle. § 87(2)(b) tells § 87(2)(b) "I heard what he said." Sergeant Haley is standing outside the front passenger door of his vehicle and instructs § 87(2)(b) to get back in his vehicle and to leave.

Sergeant Haley stated (BR 05) that he was in the front passenger seat of his unmarked vehicle, with Police Officer Semioli in the driver's seat, when they arrived as back-up for a traffic stop being conducted by Police Officer Fernandez and Police Officer Schiro. Once Police Officer Fernandez and Police Officer Schiro returned to their vehicle, Sergeant Haley and Police Officer Semioli drove away in the direction of § 87(2)(b)'s vehicle, which they passed with approximately ten feet of space between the two vehicles. Sergeant Haley made no statements as his vehicle passed § 87(2)(b)'s vehicle and he did not hear Police Officer Semioli make any statements. He denied saying to § 87(2)(b) "Suck my dick." After driving a "couple of hundred" yards, Sergeant Haley noticed in the rearview mirror that § 87(2)(b) had exited his vehicle and begun to walk towards Police Officer Schiro and Police Officer Fernandez while appearing to shout at them. Police Officer Semioli made a U-turn and returned to the incident location, where he heard § 87(2)(b) begin to mention, "Suck my dick," in the direction of Police Officer Semioli and Sergeant Haley.

When shown footage the BWC footage discussed above, Sergeant Haley explained that the only interaction he had with § 87(2)(b) was the one captured in the footage of him informing § 87(2)(b) that he was free to leave and that he should leave.

Police Officers Semioli, Fernandez, and Schiro (BR 08, BR 06, and BR 07) all denied observing Sergeant Haley make any comments towards § 87(2)(b) as his vehicle drove past § 87(2)(b)'s vehicle or hearing Sergeant Haley, or any officer, tell § 87(2)(b) "Suck my dick."

§ 87(2)(g)

It is therefore recommended that allegation C be closed as **Unable to Determine**.

Allegation (D) Abuse of Authority: Police Officer Christopher Schiro refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Christopher Schiro refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Evan Fernandez refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Evan Fernandez refused to provide his shield number to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Robert Semioli refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Robert Semioli refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Sergeant James Haley refused to provide his name to § 87(2)(b)

Allegation (K) Abuse of Authority: Sergeant James Haley refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated (**BR 03**) that after he exited his vehicle after being told, “Suck my dick,” he approached Police Officer Fernandez and Police Officer Schiro near their vehicle and asked for their name and badge numbers. Police Officer Fernandez and Police Officer Schiro allegedly told § 87(2)(b) to return to his vehicle instead of providing their name and badge numbers. After their unmarked vehicle made a U-turn and returned to the scene, Sergeant Haley and Police Officer Semioli exited the vehicle and also told § 87(2)(b) to return to his vehicle. § 87(2)(b) told Police Officer Semioli and Sergeant Haley, “Fuck you, give me your name and your badge number.” Police Officer Semioli and Sergeant Haley refused to give their information to § 87(2)(b).

§ 87(2)(b) stated (**BR 04**) that she heard § 87(2)(b) request Police Officer Fernandez and Police Officer Schiro’s names and shield numbers but did not mention hearing him request either Police Officer Semioli or Sergeant Haley’s name or shield number.

Footage from Police Officer Schiro’s BWC (**BR 12**) shows, at 5 minutes and 5 seconds, § 87(2)(b) outside of his vehicle near the trunk and close to Police Officer Fernandez and Police Officer Schiro’s vehicle. § 87(2)(b) tells the officers, “Give me y’all badge numbers,” and then immediately walks away.

The footage from the BWCs of Police Officers Schiro, Fernandez, and Semioli, in sum, capture the entirety of the portion of the incident during which Police Officer Semioli and Sergeant Haley were outside of their vehicle once they returned to the scene (the period during which § 87(2)(b) alleged that he requested their names and shield numbers). § 87(2)(b) is heard yelling at Police Officer Semioli and Sergeant Haley about Sergeant Haley allegedly telling him to “suck my dick,” but he is not heard requesting their names or shield numbers.

Both Police Officer Fernandez and Police Officer Schiro (**BR 06 & BR 07**) did not recall hearing § 87(2)(b) request the names or shield numbers of any officers. When shown the portion of Police Officer Schiro’s BWC footage discussed above, they both denied having heard that request for “y’all badge numbers” during the incident itself and cited the loud traffic on the street as a likely reason for this.

Police Officer Semioli and Sergeant Haley (**BR 08 & BR 05**) did not recall hearing § 87(2)(b) asking any officer for their name or shield number.

NYPD Administrative Guide 304-11 (**BR 19**) states that officers must state their name and shield number or otherwise provide them to anyone who requests that they do so.

Though the totality of BWC footage covers the period during which § 87(2)(b) alleged that he requested Police Officer Fernandez and Police Officer Schiro's names, the BWC footage does not capture him requesting their names. It is therefore recommended that **allegations D and F be unfounded.**

Though the BWC footage shows that § 87(2)(b) did indeed ask Police Officer Schiro and Police Officer Fernandez for their shield numbers, both officers contended that the sound of traffic passing by prevented them from hearing this request. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

it is recommended that **allegations E and G be closed as Unable to Determine.**

Though the totality of BWC footage covers the period during which § 87(2)(b) alleged that he requested Police Officer Semioli and Sergeant Haley's names and shield numbers, he is not heard requesting this information in the footage. It is therefore recommended that **allegations H, I, J, and K be unfounded.**

Allegation (L) Discourtesy: An officer gestured discourteously toward § 87(2)(b)

Allegation (M) Discourtesy: An officer gestured discourteously toward § 87(2)(b)

§ 87(2)(b) stated (**BR 03**) that as he was returning inside his vehicle at the end of the traffic stop, the shorter of the two officers in the second unmarked vehicle told him, "Yea get in your car" and then blew two kisses by making a kissing gesture with only his lips (i.e., he did not "blow the kiss" with his hand) toward § 87(2)(b). The shorter officer then returned inside his vehicle, and as he was driving away, made the same kissing gesture towards § 87(2)(b)'s son, § 87(2)(b), who was in the rear driver's side seat. § 87(2)(b) stated that the officer who made this gesture was the shorter of the two officers in the second vehicle and was not the same officer who had said, "Suck my dick." This officer was therefore identified as Police Officer Semioli.

§ 87(2)(b) (**BR 04**) stated that the same tall white officer who told § 87(2)(b) "Suck my dick," while reentering his vehicle, made a kissing gesture while blowing in the direction of § 87(2)(b), who was in the rear driver's side seat. § 87(2)(b) believed that the gesture was done to antagonize § 87(2)(b). Given § 87(2)(b)'s description of this officer and her assertion that it was the same officer who had said, "Suck my dick," this officer was identified as Sergeant Haley.

Police Officer Fernandez's second BWC clip (**BR 14**) shows, at 24 seconds, Police Officer Semioli's and Sergeant Haley's unmarked vehicle returning to the incident location with the vehicle facing the opposite direction of § 87(2)(b)'s vehicle. At 26 seconds, Police Officer Semioli exits the front driver's side and stands behind his opened door while Sergeant Haley exits the front passenger door. The position of § 87(2)(b) outside his vehicle near the front driver's door with his wife, blocks the view of Police Officer Semioli. At 31 seconds, the direction of § 87(2)(b)'s head appears to be towards Sergeant Haley, who also appears to be speaking towards § 87(2)(b). At 37 seconds, § 87(2)(b) steps into the front passenger seat of his vehicle. Beginning at 51 seconds, Sergeant Haley's left arm moves up to chest level five times and is quickly brought down each time but does not appear to be making a specific gesture towards § 87(2)(b). At 54 seconds, as § 87(2)(b) is walking towards the trunk of § 87(2)(b)'s vehicle, Police Officer Semioli enters the front driver's side of his vehicle. At 58 seconds, Sergeant Haley enters the front passenger's seat of the unmarked black vehicle. At 1 minute and 1 second, Police Officer Fernandez enters the front driver's seat of his vehicle, disrupting the view of Police Officer Semioli's and Sergeant

§ 87(2)(b)

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- Police Officer Evan Fernandez has been a member of service for six years and has been a subject in three other CCRB complaints and four other allegations, none of which were substantiated.
- Police Officer Christopher Schiro has been a member of service for nine years and has been a subject in six other CCRB complaints and twelve other allegations, of which one was substantiated:
 - CCRB Case #201903838 involved a substantiated allegation Abuse of Authority: Failure to provide RTKA card against Police Officer Schiro. The Board recommended instructions, which the NYPD imposed. § 87(2)(g) [REDACTED]
- Sergeant James Haley has been a member of service for twelve years and has been a subject in seven other CCRB complaints and fifteen other allegations, of which three were substantiated in one case:
 - CCRB Case #201502721 involved substantiated allegations of Refusal to Provide Name/Shield Number, Vehicle Search, and Vehicle Stop. The Board recommended Command Discipline - A, which the NYPD imposed. § 87(2)(g) [REDACTED]
- Police Officer Robert Semioli has been a member of service for five years and has been a subject in five others CCRB complaints and twelve other allegations, of which five were substantiated in two cases:
 - CCRB Case #202007649 involved substantiated allegations Frisk, Search (of person), and Vehicle Search. The Board recommended Command Discipline B. The NYPD took no disciplinary action.
 - CCRB Case #202102984 involved substantiated allegations of Entry of Premises and Search of Premises. The Board recommended charges but the NYPD has yet to determine discipline. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of February 22, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 21**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 2

Investigator: Zim Sessoms Inv. Zim Sessoms 11/03/2023
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 11/3/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date